# MOTOR CARRIER TRANSPORTATION AGREEMENT

*Dedicated and spot truckload capacity on Texas lanes*

Contract No. RV-B-TRN-2026-033

This Motor Carrier Transportation Agreement (the "Agreement") is entered into as of April 1, 2026 by and between **Rutaviva Logistics, Inc.**, a Texas corporation with its principal office at 1200 Frontera Logistics Parkway, Laredo, Texas 78045 (fictitious address), EIN 00-0041871 (fictitious), hereinafter **"Rutaviva"**, and **Halcon del Norte Trucking, LLC**, a Texas limited liability company located at 5100 Uniroyal Drive, Laredo, Texas 78045 (fictitious address), USDOT No. 0000000 (fictitious), MC No. 000000 (fictitious), hereinafter **"Carrier"**.

## SECTION 1. SERVICES

1.1 Carrier shall transport, as a for-hire motor carrier authorized by the Federal Motor Carrier Safety Administration (FMCSA), the truckload shipments that Rutaviva tenders under this Agreement, using 53-foot dry van equipment.

1.2 Carrier shall perform all shipments with its own equipment and drivers. Carrier shall not broker, re-broker, subcontract or interline any shipment ("double brokering") without Rutaviva's prior written consent. A breach of this Section entitles Rutaviva to terminate immediately and to withhold payment for the affected shipment.

## SECTION 2. RATES

2.1 Linehaul rates for the contracted lanes are:

| Lane | Approx. miles | Rate (USD) |
|---|---|---|
| Laredo, TX - San Antonio, TX | 157 | $2.65 per mile |
| Laredo, TX - Houston, TX | 316 | $2.45 per mile |
| Laredo, TX - Dallas, TX | 430 | $2.40 per mile |

2.2 Fuel surcharge. In addition to the linehaul rate, Rutaviva shall pay a fuel surcharge based on the U.S. national average on-highway diesel price published weekly by the U.S. Energy Information Administration (EIA). The base price is $1.25 per gallon; for every full $0.06 per gallon above the base price, the surcharge increases by one cent ($0.01) per mile.

2.3 Accessorial charges. Detention is paid at $75.00 per hour after two (2) hours of free time at each pickup or delivery appointment, up to a maximum of $600.00 per stop. Layover is paid at $350.00 per day. Detention must be documented with in and out times on the bill of lading.

## SECTION 3. SERVICE STANDARDS

3.1 Carrier shall pick up and deliver each shipment within thirty (30) minutes of the scheduled appointment and shall maintain an on-time delivery rate of at least ninety-eight percent (98%) each month.

3.2 Late delivery. For each shipment delivered more than two (2) hours after the appointment for reasons attributable to Carrier, Carrier shall pay Rutaviva a late delivery charge of two hundred fifty dollars ($250.00), plus any late delivery fine charged to Rutaviva by its customer for that shipment.

3.3 Carrier shall comply with the FMCSA hours-of-service rules and the electronic logging device (ELD) rule, and shall maintain a satisfactory or unrated safety rating. Carrier shall share real-time GPS tracking of every load with Rutaviva.

## SECTION 4. CARGO LIABILITY AND CLAIMS

4.1 Carrier is liable for loss of, damage to, or delay of cargo from pickup until delivery under 49 U.S.C. 14706 (the Carmack Amendment), up to the full actual value of the cargo, with a maximum of two hundred fifty thousand dollars ($250,000) per shipment.

4.2 Rutaviva shall file cargo claims in writing within nine (9) months after delivery or, for lost cargo, after the date delivery should have occurred. Carrier shall acknowledge each claim within thirty (30) days and pay or decline it within one hundred twenty (120) days. Lawsuits must be filed within two (2) years from the date Carrier declines the claim in writing.

## SECTION 5. INSURANCE

5.1 Carrier shall maintain, with insurers rated A- or better by AM Best: (a) auto liability of at least $1,000,000 combined single limit, which exceeds the $750,000 federal minimum of 49 CFR 387.9; (b) motor truck cargo insurance of at least $250,000 per vehicle; (c) commercial general liability of at least $1,000,000 per occurrence; and (d) workers' compensation as required by law.

5.2 Rutaviva shall be named as certificate holder and additional insured. The insurer shall give Rutaviva at least thirty (30) days' notice before cancellation of any policy.

## SECTION 6. PAYMENT

6.1 Carrier shall invoice each shipment with the signed bill of lading and proof of delivery (POD). Rutaviva shall pay within thirty (30) days after receipt of the complete documents (Net 30).

6.2 Quick pay. At Carrier's option, Rutaviva shall pay within five (5) days after receipt of the complete documents, less a quick pay discount of two percent (2%).

## SECTION 7. INCIDENT REPORTING

Incident Reporting Protocol RV-IRP-7. Supplier shall report any accident, cargo theft, hazardous material spill, roadside breakdown involving injury, or law enforcement stop affecting Rutaviva equipment to the Rutaviva Network Operations Center in Laredo, Texas, within two (2) hours of becoming aware of it, by calling the 24/7 incident line and quoting the incident code RV-IRP-7. A written incident report, including photographs, the police report number when available and the names of all persons involved, shall follow within twenty-four (24) hours. Supplier shall preserve all electronic logging device (ELD) data, dash camera footage and telematics records related to the incident for no less than three (3) years and shall make them available to Rutaviva upon request.

## SECTION 8. NON-SOLICITATION

8.1 During the term and for one (1) year after it, Carrier shall not solicit freight directly from any Rutaviva customer that Carrier served under this Agreement. Each breach entitles Rutaviva to a commission of fifteen percent (15%) of the revenue Carrier earns from that customer for one (1) year.

## SECTION 9. TERM AND TERMINATION

9.1 This Agreement begins on April 1, 2026 and continues for one (1) year. It renews automatically for successive one-year terms unless either Party gives thirty (30) days' written notice of non-renewal. Either Party may terminate it for convenience with thirty (30) days' written notice.

## SECTION 10. GOVERNING LAW

10.1 This Agreement is governed by applicable federal law and, to the extent not preempted, the laws of the State of Texas. Venue lies exclusively in Webb County, Texas.

IN WITNESS WHEREOF, the Parties have signed this document as of the date first written above.

**RUTAVIVA LOGISTICS, INC.**

By: _____
Name: Roberto Garza
Title: Freight Procurement Manager

**HALCON DEL NORTE TRUCKING, LLC**

By: _____
Name: Ana Lucia Treviño
Title: Owner